

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 2, 2026
8:30 AM/1:30 PM

9. MICHAEL J. OSBORNE V. CORTNEY A. OSBORNE

24FL0362

On December 16, 2025, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders. He filed an amended RFO on December 22nd. The amended RFO was electronically served on December 22nd however the Notice of Tentative Ruling was not served nor was the required blank FL-320. Additionally, he did not serve DCSS who is a party to the action.

Respondent filed her Responsive Declaration to Request for Order on February 20, 2026. It was served on all parties on February 18th.

Petitioner's Reply and Declaration in Support of Reply was filed on February 26th. It was served only on Respondent.

The parties attended Child Custody Recommending Counseling (CCRC) on January 14, 2026. As they were unable to reach any agreements, a report with recommendations was prepared on February 27, 2026. It was mailed to the parties on March 2nd.

Respondent filed a Reply Declaration to Petitioner's Reply Declaration & CCRC Report on March 5, 2026.

Because both parties attended CCRC, the court finds good cause to proceed with the RFO despite Petitioner's failure to serve DCSS who is a party to the action.

Petitioner is requesting joint legal custody and sole physical custody of the minor.

Respondent opposes the request and asks the court to confirm the current 2-2-3 schedule and confirm the court's orders from July 11, 2024. She further requests Petitioner be ordered to purchase a device for the minor to use while in his care and set nightly calls between the minor and Respondent.

After reviewing the filings as outlined above, the court finds the recommendations contained in the February 27, 2026 CCRC report to be in the best interests of the minor. They are hereby adopted as the orders of the court. All prior orders not in conflict with this order remain in full force and effect.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

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TENTATIVE RULING #9: AFTER REVIEWING THE FILINGS AS OUTLINED ABOVE, THE COURT FINDS THE RECOMMENDATIONS CONTAINED IN THE FEBRUARY 27, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINOR. THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT. ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN FULL FORCE AND EFFECT.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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10. MICHAEL BENJAMIN WOODARD V. AMBER LEIGH ASHLEY

25FL0885

On January 6, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders and sanctions. All required documents were served on January 8, 2026.

Respondent filed and served her Responsive Declaration to Request for Order and a Declaration of Lucas Sprenkel on March 19th.

The parties attended Child Custody Recommending Counseling (CCRC) on February 2nd. They were unable to reach any agreements therefore a report with recommendations was prepared and mailed to the parties on March 20, 2026.

The Declaration of Petitioner Michael Woodward in Reply was filed and served on March 26th. Petitioner filed an Objection to Petitioner's [Late] Reply Declaration and Request to Strike.

The court finds the Reply Declaration to be late filed pursuant to Civil Procedure section 1005(b). Section 1005(b) mandates all reply papers to be filed at least five court days before the hearing date. Section 12c states, "[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12." Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made March 25th the last day for filing Petitioner's Reply. Therefore, it is late filed. Respondent's objection is sustained. The Reply Declaration has not been read or considered by the court.

Petitioner is requesting joint legal and joint physical custody of the minor with a 2-2-5 schedule and a holiday schedule and vacation time. He further asks that each party place \$50,000 in trust pending final dissolution of the marriage due to potential property issues. Finally, he requests sanctions in the amount of \$2,500 due to Respondent's failure to respond to meet and confer efforts on these issues.

Respondent agrees to joint legal custody and joint physical custody. She also agrees to the proposed 2-2-5-5 schedule with the caveat that the minor be returned to Respondent's care by 8pm the evening before Petitioner's early morning shift and that Petitioner be ordered to take the minor to all of her previously enrolled extracurricular and school activities. In the event Petitioner cannot provide such transportation, Respondent asks that she be allowed to provide transportation for these events. She opposes the request regarding the home sale proceeds and the request for sanctions.

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After reviewing the filings as outlined above, the court finds the recommendations contained in the March 20, 2026 CCRC report to be in the best interests of the minor. They are hereby adopted as the orders of the court.

Regarding the request to put funds in trust, it is a longstanding tenant of the law that the court shall divide the community estate of the parties equally. Cal. Fam. Code 2550. Inherent in the court's authority to equally divide the community estate, the court holds broad discretion to "...make any orders [it] considers necessary..." Fam. Code § 2553. Here, other than citing anticipated "potential property issues" Petitioner provides no basis for his requested order. Given that he has failed to show that an order for the parties to deposit funds in trust is necessary to ensure the community estate is divided equally, the request is denied.

Turning to Petitioner's request for sanctions, the request does not cite any statutory basis. Presumably the request is made pursuant to Family Code § 271 which states, in pertinent part, "...the court may base an award of attorney's fees and costs on the extent to which the conduct of each party or attorney furthers or frustrates the policy of the law to promote settlement of litigation and, where possible, to reduce the cost of litigation by encouraging cooperation of the parties and attorneys. An award of attorney's fees and costs pursuant to this section is in the nature of a sanction." Fam. Code § 271(a).

Here, it does appear that the failure to meet and confer on the part of Respondent's attorney was inadvertent. That said, almost a month passed from the date of the meet and confer email until the filing of the RFO. Generally, the court would be inclined to order sanctions, however according to Respondent's counsel an attempt to meet and confer was made after receipt of the RFO and that attempt went unanswered by Petitioner's counsel. Ultimately, because both parties have been less than responsive in attempting to resolve this matter informally the court is not awarding sanctions. However, both parties are admonished that continued failure to meet and confer may result in monetary sanctions in the future.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENATIVE RULING #10: THE COURT FINDS THE RECOMMENDATIONS CONTAINED IN THE MARCH 20, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINOR. THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT. THE REQUEST FOR

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EACH PARTY TO DEPOSIT \$50,000 IN TRUST IS DENIED. THE REQUEST FOR SANCTIONS IS DENIED. HOWEVER, BOTH PARTIES ARE ADMONISHED THAT CONTINUED FAILURE TO MEET AND CONFER MAY RESULT IN MONETARY SANCTIONS IN THE FUTURE.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

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